

Subject: Re: Request for Custody Confirmation — Imerman Devices (AC-2025-LON-004293) [HFC-HFC.FID182629]
Date: Monday, January 12, 2026 at 6:55:34 PM Greenwich Mean Time
From: Nadia <nadia@rosekross.com>
To: Mark Harper <M.Harper@HFCLAW.COM>
CC: c.park@hfclaw.com <c.park@hfclaw.com>, hmctslegal@justice.gov.uk <hmctslegal@justice.gov.uk>, pslordchancellor@justice.gov.uk <pslordchancellor@justice.gov.uk>, Diana.Parker@withersworldwide.com <Diana.Parker@withersworldwide.com>, Katharine.Landells@withersworldwide.com <Katharine.Landells@withersworldwide.com>, justicecom@parliament.uk <justicecom@parliament.uk>, Roisin.HedigerHoward@governmentlegal.gov.uk <Roisin.HedigerHoward@governmentlegal.gov.uk>, administrativecourt@justice.gov.uk <administrativecourt@justice.gov.uk>
Attachments: image001.png, image002.jpg, 2026-01-12_Response_to_HFC_Request_for_Custody_Clarification_Imerman_Devices.pdf, 2025-12-12_Imerman_Exhibit_Index_and_Administrative_Duties.pdf, E0_2023-12-10_Notification_to_Master_of_the_Rolls_REDACTED.pdf, E1_2024-02-08_Correspondence_to_SJE_Criminal_Relevance.pdf, E2_2024-04-11_Correspondence_to_Secretary_of_State_for_Justice.pdf, E3_2024-04-12_Correspondence_to_High_Court_Family_Division.pdf, E4_2024-05-12_Mass_Correspondence_to_MPs_and_Committees.pdf, E5_Imerman_Solicitor_Correspondence_Duty_to_Review.pdf, E6_Imerman_Timeline_and_Uncompleted_Review.pdf

Dear Mr Harper,

Thank you for your email of 9 January 2026.

Your response raises serious public law concerns which require clarification.

The fact that your firm “has not acted for the Respondent for several years” is not responsive to the issue raised. The question is not one of elapsed time, but of custody, chain of custody, and compliance with court-ordered Imerman procedures in respect of electronic devices known to contain material of evidential and potential criminal relevance. Where devices are taken into custody pursuant to court process, the passage of time does not extinguish duties relating to safeguarding, preservation, review, and lawful disposal.

Your statement that the Imerman material is “no longer in the possession of this firm” therefore gives rise to a further and urgent issue: on whose authority, by what mechanism, and following what review process the devices ceased to be held, and whether this occurred in compliance with the applicable duties once criminal relevance had been notified.

The suggestion that “the Respondent will be able to explain” is also concerning. The Respondent is not the custodian of the devices for the purposes of this inquiry. This is not a private dispute between parties. It concerns a systemic failure in the handling of evidential material, now the subject of a live Judicial Review (Administrative Court reference AC-2025-LON-004293).

Responsibility for the handling of Imerman material is clearly defined in law. Once electronic devices are taken into custody pursuant to court process, responsibility for safeguarding, preserving, and ensuring lawful review rests with the custodian and, ultimately, the State bodies responsible for oversight and administration of the process. That responsibility does not transfer to a party, and it cannot be displaced by reference to the Respondent. To do so is a deflection from the legally defined custodial duties that apply in these circumstances.

For the avoidance of doubt, I am not asking the Family Court (or any court office) to investigate or prosecute criminal allegations. I am asking for a custodial account of court-controlled evidential material: whether a lawful Imerman review was completed, and—if the devices left your firm’s possession—when, how, to whom, and under what authority.

This issue is now squarely engaged on the record in the Administrative Court proceedings, where the Defendants' filed position acknowledges (i) that the devices were identified as "Imerman devices" (a MacBook Pro and an "Ubuntu Computer") held in escrow, (ii) that criminal relevance was raised, and (iii) that the court-appointed crypto Single Joint Expert did not copy the Respondent's legal team into the relevant email expressly because doing so "may jeopardise any ongoing criminal investigation".

It is also necessary to be explicit about the seriousness of the material at issue. The devices contained evidence indicating money laundering of proceeds of prostitution through cryptocurrency assets. A criminal referral made on the basis of limited access to that material resulted in an ongoing criminal investigation by the U.S. IRS: Criminal Investigation Division.

The existence of this criminal evidence, and its U.K. nexus, was formally notified at multiple stages, including to the **Master of the Rolls** (December 2023), the court-appointed crypto **Single Joint Expert** (February 2024), the **Lord Chancellor** (April 2024), the **High Court** (April 2024), **Members of Parliament** (May 2025), the **Court of Appeal**, and again in the **Pre-Action Protocol** correspondence. The open solicitors' correspondence demonstrates that the criminal relevance of the devices was a known fact and leaves no doubt as to your firm's responsibilities under the applicable legal framework. There were repeated warnings, the seriousness of the evidence was understood, and it was expressly raised in both my written statements and oral evidence. This was a grave and entirely avoidable failure. The responsibility for addressing it lies with the custodian and the State, not with a private individual. The matter plainly engages the public interest and requires Parliamentary scrutiny.

As you are aware, a Notice confirming that a Judicial Review has been filed in respect of failures in the handling of criminal evidence has been placed in the public domain. For transparency and scrutiny, the evidential record (including contemporaneous correspondence, timelines, and indices) is publicly accessible at:

<https://github.com/nadiazahmoul/JR-Zahmoul-v-SSJ-HMCTS-Archive>

For convenience—recognising that not all recipients will access the public repository—I also attach a limited selection of documents evidencing the chronology of notice, the acknowledged legal duties, and the unresolved custodial position.

In the interests of transparency and public accountability, a press update will be issued to accredited media outlets to reflect recent developments in the Judicial Review and the unresolved custody issues concerning the handling and loss of material evidence.

In circumstances where adverse findings were made against me in the family proceedings, the disappearance or non-review of material evidence which was repeatedly flagged as critical and criminally relevant raises issues of procedural fairness, equality of arms, and the integrity of the justice system. These are not matters capable of being resolved informally or retrospectively.

Given the public interest engaged, and the implications for confidence in the administration of justice, this is now a matter which properly falls for **state accountability** and, if necessary, **Parliamentary inquiry**.

I would therefore be grateful if you would confirm, on the record:

1. when and on what authority the Imerman devices left your firm's custody;

2. whether any review compliant with Imerman principles was completed prior to that point; and
3. to whom the devices were transferred or returned.

I am copying this correspondence to the Defendants in the Judicial Review, the Administrative Court, and the House of Commons Justice Committee, given the public interest issues engaged.

Yours sincerely,

Nadia Zahmoul

Claimant — **Judicial Review AC-2025-LON-004293**

Nadia Zahmoul
Claimant — Zahmoul v Secretary of State for Justice & HMCTS
High Court (Administrative Court) | Case Ref: AC-2025-LON-004293

Transparency Notice:

A public archive of officially filed, lawfully publishable documents relating to this Judicial Review is maintained for reference and verification purposes.

Repository: <https://github.com/nadiazahmoul/JR-Zahmoul-v-SSJ-HMCTS-Archive>

No confidential or private third-party material is published.

On 09/01/2026, 6:14 PM, "Mark Harper" <M.Harper@HFCLAW.COM> wrote:

Dear Ms Zahmoul

My firm has not acted for Mr Zahmoul for several years and so you should take this matter up with him or lawyers he instructs.

However the *Imerman* material you refer to is no longer in the possession of this firm; Mr Zahmoul will be able to explain.

Yours sincerely

Mark Harper

Partner

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No contracts may be concluded on behalf of Hughes Fowler Carruthers by email.

From: Nadia <nadia@rosekross.com>
Sent: 12 December 2025 07:00
To: Caroline Park <C.Park@HFCLAW.COM>
Cc: litigation@justice.gov.uk; hmctslegal@justice.gov.uk; pslordchancellor@justice.gov.uk; Parker, Diana <Diana.Parker@withersworldwide.com>; Landells, Katharine <Katharine.Landells@withersworldwide.com>; justicecom@parliament.uk
Subject: Request for Custody Confirmation — Imerman Devices (AC-2025-LON-004293)
Importance: High

Dear Ms. Park,

I write as the Claimant in **Zahmoul v Secretary of State for Justice & HMCTS (Administrative Court reference AC-2025-LON-004293)**.

Your firm took custody of electronic devices identified as “Imerman material” on 13 April 2021 and is the last custodial holder of record. For ease of reference, I attach copies of the contemporaneous open correspondence relating to the delivery and custody of these devices.

Could you please confirm the following:

1. Whether these devices remain in your firm’s custody;
2. If not, the date on which they were released, and to whom;
3. A copy of the Court order or written authority under which any release occurred;
4. An audit trail recording all movements, access, or transfers of the devices while held by your firm.

For the avoidance of doubt, there is no issue of anonymity in this matter. Confirmation of the above is requested in the context of a public Judicial Review into the administrative duties of public bodies and is of public interest.

I would be grateful for your response by **16:00 on 12 December 2025**.

Yours faithfully,

Nadia Zahmoul

Claimant

Zahmoul v Secretary of State for Justice & HMCTS

Administrative Court Reference: AC-2025-LON-004293

Nadia Zahmoul
Claimant — Zahmoul v Secretary of State for Justice & HMCTS
High Court (Administrative Court) | Case Ref: AC-2025-LON-004293

Transparency Notice:

I maintain a public GitHub repository containing officially filed, lawfully publishable documents in this Judicial Review. The archive exists to ensure transparency, evidential integrity, and public-interest accountability in a case

involving potential misadministration of court-controlled evidence and a named Cabinet-level Defendant.

Repository: <https://github.com/nadiazahmoul/JR-Zahmoul-v-SSJ-HMCTS-Archive>

No confidential or private third-party material is published.
